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Provision of August 31, 2023

Register of provisions

n. 389 of August 31, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stazione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Legislative Decree No. 101 of August 10, 2018, containing
"Provisions for the adaptation of national legislation
to the provisions of Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC";

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of 04/04/2019, published in
G.U. No. 106 of 08/05/2019 and on www.gpdp.it, doc. web
n. 9107633 (hereinafter "Guarantor Regulation No.
1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the
organization and functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Rapporteur Prof. Ginevra Cerrina Feroni;

PREMISED

1. The complaint and the investigative activity

With a complaint submitted to the Authority, Mr. XX reported an alleged violation of the regulations on the protection of personal data by the individual enterprise "Mednow Medical Center di Giugni Marco" – Tax Code XX, residing in XX, XX - as the data controller. In particular, the complainant claimed to have exercised the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, the "Regulation"), on dates XX and XX, and that he had not received a response. In particular, the complainant stated that he had requested access to his personal data, rectification, and deletion (Articles 15, 16, and 17 of the Regulation) of certain inaccurate data - as the report of a sample taken by the aforementioned healthcare facility "contained incorrect identifying data of the data subject (date of birth and tax code)" - as well as the limitation of the same (Article 18 of the Regulation). Following this complaint, the Office addressed the aforementioned individual enterprise, inviting it to comply with the complainant's requests, and in a note dated XX, the data controller provided a response regarding which, however, the complainant himself, in a note dated XX, made observations to the controller and to the Authority. On this occasion, the complainant also highlighted that the report concerning the result of the molecular swab, carried out at the data controller, had initially been sent to an email address not corresponding to the one provided by the complainant at the time of the clinical examination booking. In a note dated XX (prot. n. XX), the Office, taking into account these observations, requested information from the aforementioned enterprise, pursuant to Article 157 of Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data" (hereinafter "Code"). In a note dated XX, the data controller, in providing the requested elements, stated, among other things, that:

- "The individual enterprise Mednow Medical Center di Giugni Marco, Tax Code XX, was deleted from the Business Register on 05/04/2022 (...);
- Mr. XX, on date XX, booked a molecular swab to be performed at his home, filling out the attached form (...);
- the processing of the swab was carried out by a center accredited by the Lombardy Region (XX), (...), which, at the time of signing the agreements with Mednow Medical Center di Giugni Marco, declared itself responsible for the processing and committed to correctly handle sensitive data on behalf of the latter (...);

- regarding the alleged sending of the swab result to a different address, to date, it is not known whether the sending to this one different address has actually resulted in access to the personal data contained therein by third parties;
- In any case, as highlighted by Mr. XX, the Responsible for the processing mentioned above made an error in transcribing the Tax Code and the date of birth, indicating XX instead of XX: consequently, that report (the same sent as an attachment to the incorrect email) is clearly not attributable to the Mr. XX, due to the presence of inaccurate personal data;
- (...) as far as is known, there have been no prejudicial consequences to the rights and freedoms of the data subject, Mr. XX, as it does not appear that the content of the aforementioned email was communicated or disseminated to third parties and, even if read, could not be traced back to the data subject in question;
- furthermore, as far as is known, Mr. XX has not raised any further complaints against the undersigned regarding any consequences of the matter in question;
- regarding the incorrect indication of some data on the swab, it is noted that such error is attributable to XX, who poorly filled out the swab report by indicating the incorrect year of birth and tax code, reading them from the document produced (...). As soon as aware of this error, Mednow Medical Center promptly requested — via telephone communication — the correction of the error (...);
- it is also specified that immediately following Mr. XX's complaints, through his own lawyer, Mednow Medical Center offered the payment of a sum as a settlement (...), which, however, did not follow;
- following the cancellation of the individual business from the Business Register, the Owner has not carried out any further activities and thus no processing of personal data."

In light of the above statements, the Office, with a note dated XX, requested information, pursuant to Article 157 of the Code, from XX, the data controller, who, in response, declared, among other things, and documented the following:

- "Regarding the circumstance that the report of the complainant contained inaccurate data 'in the transcription of the tax code and the date of birth, indicating XX instead of XX,' no responsibility is attributable to the undersigned, who merely received, for the purpose of reporting, the data provided by the Mednow Medical Center of Marco Giugni (...). Therefore, any transcription error of data would need to be traced back to the origin, at the time of the patient's acceptance by the Mednow Medical Center of Marco Giugni";
- "We have not received any request for data correction from the Mednow Medical Center of Marco Giugni";
- "We acknowledge that the contractual relationship established at the time of the events with the Mednow Medical Center of Marco Giugni has now ceased."

2. Assessments of the Department on the processing carried out and notification of the violation referred to in Article 166, paragraph 5, of the Code

Based on the documentation produced and the statements made, the Office, with a note dated XX (prot. no. XX), taking into account the cancellation of the individual business "Mednow Medical Center of Giugni Marco," notified the latter, as the data controller, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation. In particular, the Office found that Marco Giugni, owner of the individual business "Mednow Medical Center of Giugni Marco" and data controller:

- did not respond to the requests for the exercise of the rights of the data subject made on dates XX and XX and provided a response — deemed inadequate by the data subject — only following the Office's invitation to comply on date XX; this, in violation of Article 12, in relation to Articles 15, 16, 17, and 18 of the Regulation;

- processed some data of the complainant (date of birth and tax code), present in the report of the examination carried out by the complainant, in violation of the principle of accuracy, in violation of Article 5, paragraph 1, letter d) of the Regulation;
- sent the report regarding the outcome of the clinical examination carried out on the data subject to the email address of an unauthorized third party, in violation of Article 9 of the Regulation, as well as the security obligations under Article 5, paragraph 1, letter f) and Article 32 of the same Regulation.

This, following the following assessments.

First of all, at the time of sending the requests for the exercise of rights pursuant to Articles 15 to 22 of the Regulation, made by the data subject, the aforementioned individual business was still operational, as the cancellation from the business register occurred on date XX. The requests, as represented by the complainant, were sent on dates XX and XX. In relation to these requests, it appears that the data controller did not provide a response. In particular, the data subject requested access to his personal data, rectification, and deletion (Articles 15, 16, and 17 of the Regulation) of some inaccurate data — as the report of the aforementioned test to which the complainant underwent “contained incorrect identifying data of the data subject (date of birth and tax code)” — as well as the limitation of the same (Article 18 of the Regulation). Only following the Authority's invitation to comply was a response provided on date XX, which was deemed inadequate by the complainant.

Regarding the contested inaccuracy of the data, it was found that the communication, by the data controller, to the clinical analysis laboratory XX, responsible for processing — which performed the analyses and reporting of biological samples for the “Mednow Medical Center of Giugni Marco” — of inaccurate personal data of the data subject (date of birth and tax code), resulted in the processing of the report (related to the examination carried out by the data subject) containing such inaccurate data by that clinical analysis laboratory.

**In relation to the first email sent by the data controller - regarding the report (containing the incorrect data mentioned above) to another address not corresponding to that of the data subject, as complained by the complainant, it appears from the documents that this has been confirmed multiple times by the same data controller. The Office, in addition to contesting the above, has also invited the data controller to produce defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981). **

In a note dated XX (protocol no. XX), the data controller, Marco Giugni, produced a defensive memorandum, in which he highlighted, among other things, that:

***“At the time of the events under examination, the epidemiological situation was characterized by high levels of incidence with a mortality rate that was slowly but continuously increasing. By way of example and not exhaustive, it is sufficient to recall that the COVID bulletin of 17.12.2021 recorded in Lombardy: 5,590 positives and 26 victims, with a positivity rate of +3.8%; 146,245 tests carried out and only in Milan and province were recorded 2,075 new cases (doc. 2)”;

***“With Legislative Decree No. 221 of 24.12.2021, the national state of emergency was extended and the adoption of further measures for the containment of the spread of the COVID epidemic was established. This is a brief summary of the pandemic situation at the time of the events. It was deemed necessary to remind this Department of the emergency situation at the time of the events, believing that the episode, which is the subject of this proceeding, cannot be adequately assessed unless contextualized within a period that, we all hope, remains unique for its peculiarity”;

***“(…) it is believed that the assessment of a single and not repeated material error of transcription, caused by a human conduct in absolute good faith, should be contextualized and also related and evaluated in light of the significant workload that characterized the activity of the then individual enterprise of which the undersigned was the owner in December XX. During that period and in the immediately following month of January XX, MedNow was literally overwhelmed with requests and was subjected to a very intense workload to try to best meet the extremely high demand from the community. As widely confirmed by the COVID bulletin referring to the month of January XX, which is

produced as doc. 3). In such a context, the missed responses to the requests of the complainant made on dates XX and XX are situated,**

***“By the complainant's own admission, Mr. XX, the error regarding the tax code and date of birth was made by XX in his capacity as data controller. XX, responsible for reporting the molecular swab, made an error in reporting - date of birth and tax code - from the form filled out by the complainant to the report (cf. doc. 2). Thus, effectively rendering that report not attributable to the complainant himself (...);**

***“The complainant's report was sent to the email address of an unauthorized third party. This circumstance is unfortunately incontrovertible. What remains debatable is the fact that from that error, due to a human conduct devoid of intent, a damage was produced to the complainant. It cannot be overlooked that no evidence has been produced that the report sent to the email address of an unauthorized third party was actually communicated or disclosed to unauthorized third parties. Furthermore, it cannot be overlooked that even in the denied and not believed hypothesis in which that report was communicated and disclosed to unauthorized third parties, it could not have been attributed to the complainant due to the incorrectly reported personal data”,**

***“The individual enterprise of which the undersigned was the owner at the time of the episode in question was deleted from the business register on 5.04.2022. This circumstance completely excludes any possible unfortunate repetition of the conduct, even though it was accidental. This circumstance would make the application of any sanction particularly punitive, as already reiterated, excessive since the report - for the reasons stated above - is not attributable to the complainant.”**

***“In relation to the measures taken to mitigate the effects of the violation for the data subject, it is specified that, to date, there has been neither news nor evidence that the data subject has actually suffered effects/consequences/damages from the violation in question.”**

3. Outcome of the investigative activity

Having taken note of what was represented by the data controller in the documentation on file and in the defensive memoranda, the following observations are made.

3.1 Data subject to processing

Personal data is defined as “any information relating to an identified or identifiable natural person (‘data subject’)” and “data concerning health” refers to “personal data related to the physical or mental health of a natural person, including the provision of health care, which reveals information about his or her health status” (Article 4, paragraph 1, nos. 1 and 15 of the Regulation). These latter data deserve greater protection since the context of their processing could create significant risks to fundamental rights and freedoms (Recital No. 51). The data processed in the case in question, relating to health services provided to the

Claimant, therefore, are considered as data related to health.

3.2 Compliance with applicable principles of processing and, in particular, the principle of accuracy (art. 5, paragraph 1, letters a) and d) of the Regulation)

The data controller, based on what is provided by the Regulation, is required to process such data lawfully, fairly, and transparently in relation to the data subject (principle of “lawfulness, fairness, and transparency”); the data must be “accurate and, where necessary, kept up to date; all reasonable measures must be taken to erase or rectify inaccurate data without delay, in relation to the purposes for which they were processed (“accuracy”)” (art. 5, par. 1, letters a and d) of the Regulation). In this regard, the data controller has stated that the clinical analysis laboratory XX, responsible for the processing, “made an error in reporting - date of birth and tax code - from the form filled out by the claimant to the report”; in fact, from the documents produced during this proceeding by the data processor (see email - dated XX - attached to the response provided by the data processor to the request for information made by the Authority pursuant to art. 157 of the Code), it appears that the individual enterprise communicated to this processor the inaccurate personal data of the data subject (specifically: date of birth and tax code: XX - XX, instead of XX - XX), thus resulting in the processing

by this clinical analysis laboratory of the report concerning the data subject containing such inaccuracies.

3.3 Sending the report to the email address of a third party in the absence of a legal basis and failure to comply with security obligations related to processing (arts. 5, letter f), 32, and 9 of the Regulation) Regarding the sending, by the data controller, of the "(...) report of the claimant (...) to the email address of an unauthorized third party," the Regulation provides that the controller is required to comply with the principles of data protection, including that of "integrity and confidentiality," according to which personal data must be "processed in a manner that ensures appropriate security (...), including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical and organizational measures" (art. 5, par. 1, letter f) of the Regulation); furthermore, the controller must implement "appropriate technical and organizational measures to ensure a level of security appropriate to the risk," taking into account, among other things, "the nature, scope, context, and purposes of the processing, as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons" (art. 32 of the Regulation).

The controller, in the responses and the aforementioned memorandum provided to the Authority, asserted that it sent the "(...) report of the claimant (...) to the email address of an unauthorized third party": although the occurrence was caused by human error in transcribing the email address of the data subject, this nonetheless constitutes a critical issue attributable to negligence, which materialized, in this circumstance, in the failure to comply with the security obligations imposed by the Regulation, as well as, as outlined below, in a communication of health-related data in the absence of a legal basis (regarding negligence, see "Guidelines on the application and imposition of administrative fines under Regulation (EU) 2016/679" adopted on October 3, 2017, par. III, letter b) and "Guidelines 04/2022 on the calculation of administrative fines under the GDPR - Version adopted on May 24, 2023," chap. IV, point 4.2.2).

Considering the content of the email in question, it is noted that the regulations on personal data protection provide - in the health sector - that information about health status may only be communicated to the data subject and may be communicated to third parties only on the basis of an appropriate legal basis or prior written delegation from the data subject (art. 9 of the Regulation and art. 84 of the Code in conjunction with art. 22, paragraph 11, legislative decree August 10, 2018, no. 101). In light of this, the described conduct consisting of sending the email to which the report concerning the claimant was attached, to the address of an unauthorized recipient, constitutes an unlawful communication of health-related data. Moreover, no evidence has been produced by the data controller that the sending of such email reached an inactive address, and the argument put forward by the controller, that "It cannot be overlooked that even in the denied and not believed hypothesis in which that report was communicated and disseminated to unauthorized third parties, it could not have been traced back to the claimant due to the inaccurately reported personal data," cannot be accepted as a defense against the charge of unlawful communication in question, as, although the tax code and date of birth contained in the report were incorrectly transcribed, other data correctly referring to the claimant were nonetheless present in that report, making them identifiable (name and surname, phone number, etc.) (art. 4, paragraph 1, n. 1 of the Regulation).

3.4 Failure to respond to the request for the exercise of rights (art. 12 in relation to arts. 15, 16, 17, and 18 of the Regulation).

Regarding information, communications, and transparent methods for the exercise of the rights of the data subject, art. 12, par. 3, of the Regulation establishes that the data controller must respond to the request of the data subject, made pursuant to arts. 15 to 22 of the Regulation, without unjustified delay and, in any case, no later than one month from receipt thereof. This term may be extended by two months, if necessary, taking into account the complexity and number of requests, provided that the data subject must be informed of such extension and the reasons for the delay within one month from receipt of the request. If the data controller does not comply with the request of the data subject, they must, in any case, inform the data subject without delay and, at the latest, within one month from receipt of the request, of the reasons for non-compliance and the possibility of lodging a

complaint with a supervisory authority and of seeking judicial remedy (recital 59 and Article 12, paragraph 4, of the Regulation).

In relation to the requests for the exercise of rights under Articles 15 to 22 of the Regulation submitted by the data subject on dates XX and XX, it has been established that the data controller did not provide a response, except following the invitation to comply from the Authority. This response, provided on date XX, was deemed inadequate by the complainant.

In relation to the above, however, consideration is given to what was highlighted by the data controller in the defense memorandum, regarding the epidemiological emergency of the last two years, for which the conduct of the data controller must be assessed “(...) in light of the significant workload that characterized the activity of the then sole proprietorship of which the undersigned was the owner in December XX. During that period and in the immediately following month of January XX, MedNow was literally overwhelmed with requests and was subjected to a very intense workload to try to best meet the extremely high demand from the community. As widely confirmed by the Covid bulletin relating to January XX (...)”.

4. Conclusions

In light of the evaluations set forth above, taking into account the statements made and the documentation produced during the investigation and considering that, unless the fact constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code (“Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor”), the elements provided by the data controller in the aforementioned defense memoranda are not suitable to accept the request for dismissal, as they do not allow overcoming the observations notified by the Office with the aforementioned initiation act of the proceeding.

Therefore, in relation to the matter in question complained of by the complainant, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by Marco Giugni, former owner of the sole proprietorship “Mednow Medical Center di Marco Giugni”, is noted, as it has been established that the data controller:

- a) processed some data of the complainant (date of birth and tax code) in violation of the principle of accuracy, in breach of Article 5, paragraph 1, letter d) of the Regulation;
- b) sent the report regarding the outcome of the clinical examination carried out by the data subject to the email address of an unauthorized third party, in violation of Article 9 of the Regulation, as well as the security obligations under Article 5, paragraph 1, letter f) and Article 32 of the same Regulation;
- c) did not respond to the requests for the exercise of the rights of the data subject submitted on dates XX and XX; on date XX, following the invitation to comply from the Authority, provided a response, which was deemed inadequate by the data subject; this, in violation of Article 12, in relation to Articles 15, 16, 17, and 18 of the Regulation.

In the outlined framework, considering that the conduct of the data controller has exhausted its effects as the latter has ceased its entrepreneurial activity, to which the aforementioned violations are attributable, having canceled the sole proprietorship from the business register on date XX and, moreover, that the state of emergency - in relation to which the request of the complainant for rectification of the report of the Covid-19 test was relevant - declared by the Council of Ministers from January 31, 2020, ceased - with D.M. No. 24 of March 24, 2022 - on March 31, 2022, the conditions for the adoption of corrective measures under Article 58, paragraph 2, of the Regulation do not currently exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and ancillary sanctions (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of Articles 5, paragraph 1, letters d) and f), 9, 12 in relation to Articles 15, 16, 17, and 18,

as well as Article 32 of the Regulation is subject to the application of the administrative pecuniary sanction pursuant to Article 83, paragraph 4, letter a) and paragraph 5, letters a) and b) of the Regulation (Article 166, paragraphs 1 and 2, of the Code).

It should be noted that the Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Guarantor] adopts the injunction order, which also provides for the application of the ancillary administrative sanction of its

****Publication, in full or in extract, on the website of the Authority pursuant to Article 166, paragraph 7, of the Code**** (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, as indicated in Article 83, paragraph 1, of the Regulation, in light of the elements provided in Article 83, paragraph 2, of the Regulation, with respect to which it is observed that:

- they were isolated incidents (the unlawful acts referred to in points a), b), and c) of the above paragraph 4) and, based on the statements of the data controller, "the same (...) (complainant) did not raise further complaints against the undersigned regarding any consequences of the matter in question" (Article 83, paragraph 2, letter a) of the Regulation);
- with reference to the unlawful acts referred to in points a) and b) of the above paragraph 4, it was a "(...) material transcription error, caused by human conduct in absolute good faith" (Article 83, paragraph 2, letter b) of the Regulation);
- the data controller has demonstrated cooperation with the Authority (Article 83, paragraph 2, letter f) of the Regulation);
- there are no previous relevant violations committed by the data controller (Article 83, paragraph 2, letter e) of the Regulation);
- the conduct of the data controller, concerning the unlawful acts referred to in points a), b), and c), dates back to the period of greater spread of the Covid-19 pandemic, for which the error made by the data controller appears partially excusable considering the particular operational difficulties faced. The conduct must, in fact, be evaluated "(...) in light of the significant workload that characterized the activity of the then individual enterprise of which the undersigned was the owner in December XX. During that period and in the immediately following month of January XX, MedNow was literally overwhelmed with requests and was subjected to a very intense workload to try to best meet the extremely high demand from the community. As widely confirmed by the Covid bulletin referring to January XX (...)" (Article 83, paragraph 2, letter k) of the Regulation);

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction provided for by Article 83, paragraph 5 of the Regulation, in the amount of €10,000.00 (ten thousand) for the violation of Articles 5, paragraph 1, letters d) and f), 9, 12 in relation to Articles 15, 16, 17, and 18, as well as Article 32 of the Regulation, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

It is also considered that the accessory sanction of publication on the website of the Authority of this provision, provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied, also considering the nature of the data subject to the unlawful conduct.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY**** declares the unlawfulness of the

processing of personal data carried out by Marco GIUGNI – Tax Code XX, residing in XX, XX, formerly the owner of the individual enterprise "Mednow Medical Center of Marco Giugni," deleted from the business register on April 5, 2022, for the violation of Articles 5, paragraph 1, letters d) and f), 9, 12 in relation to Articles 15, 16, 17, and 18, as well as Article 32 of the Regulation;

****ORDERS**** pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, Marco Giugni residing in XX, XX – Tax Code XX, to pay the sum of €10,000.00 (ten thousand) as an administrative monetary sanction for the violations indicated in this provision; it is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

****COMMANDS**** the aforementioned data controller, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000.00 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

****DISPOSES**** pursuant to Article 166, paragraph 7, of the Code, the full publication of this provision on the website of the Authority and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, August 31, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei